

25STCV19430 25STCV19430

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV19430 Hearing Date: July 13, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

LARRY SMITH

, et al.;

Plaintiffs,

vs.

KIA AMERICA, INC.

, et al.;

Defendants.

Case

No.:

25STCV19430

Hearing

Date:

July
13, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

defendant KIA AMERICA, INC.'S DEMURRER TO
PLAINTIFFS' COMPLAINT

MOVING PARTY: Defendant Kia America, Inc.

RESPONDING PARTIES: Plaintiffs Larry Smith and Janice Perkins

Demurrer to Complaint

The court considered the moving, opposition, and reply papers filed in connection with the demurrer.

BACKGROUND

Plaintiffs Larry Smith and Janice Perkins ("Plaintiffs") filed the Complaint in this action against defendant Kia America, Inc. ("Defendant") on June 30, 2025.

Defendant now demurs to the fifth cause of action for fraudulent inducement – concealment asserted in Plaintiffs' Complaint.

DISCUSSION

The court overrules Defendant's demurrer to the fifth cause of action for fraudulent inducement – concealment on the ground that it is barred by the statute of limitations because Plaintiffs have alleged that they did not discover the facts constituting the fraud or mistake until shortly before filing this action (FAC, ¶ 24), such that Defendant has not shown that it is

necessarily barred by the statute of limitations. (Code Civ. Proc., §§ 430.10, subd. (e), 338, subd. (d) ["The cause of action [for fraud] is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake"].)

The court sustains Defendant's demurrer to the fifth cause of action for fraudulent inducement – concealment because it does not state facts sufficient to constitute a cause of action since Plaintiffs have not alleged the element of Defendant's duty to disclose the engine defect since they have not alleged facts establishing a transactional relationship between themselves and Defendant, including because Plaintiffs have not alleged facts establishing that they purchased the vehicle directly from Defendant or its agent and that, during the course of those direct dealings, Defendant concealed facts regarding the engine defect from Plaintiffs.[1]

(Code Civ. Proc., § 430.10, subd. (e); Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40-41 [circumstances imposing a duty to disclose "presuppose a preexisting relationship between the parties" which "must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large"].)

The burden is on the plaintiff "to articulate how it could amend its pleading to render it sufficient." (Palm Springs Villas II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290.) To satisfy that burden, a plaintiff "must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The court finds that Plaintiffs have not met their burden to show how they can amend the fifth cause of action to render it sufficient against Defendant. The court therefore sustains Defendant's demurrer to that cause of action without leave to amend.

ORDER

The court sustains defendant Kia America, Inc.'s demurrer to plaintiffs Larry Smith and Janice Perkins's fifth cause of action for fraudulent inducement—concealment without leave to amend.

The court orders defendant Kia America, Inc. to file an answer to plaintiffs Larry Smith and Janice

Perkins's Complaint within 10 days of the date of this order.

The court orders defendant Kia America, Inc. to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 13, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court

[1]

Although Plaintiffs allege that the vehicle was manufactured and or distributed by Defendant (FAC ¶ 6), Plaintiffs did not allege that the dealership is Defendant's agent for all purposes. (See, e.g., *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 844, review dismissed Dec. 18, 2024 [finding complaint sufficient and declining to hold claim barred on the ground that there was no relationship requiring Nissan to disclose known defects where plaintiffs alleged they bought the car from a Nissan dealership, that Nissan backed the car with its warranty, and "Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers"] [emphasis added].) Instead, the Complaint alleges that Defendant's dealerships are only its authorized agents for vehicle repairs. (FAC ¶ 51.)